

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JULY 29, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**In the Matter of UniFirst Corporation,
Case No. CL25-07704**

Petition to Confirm Arbitration Award

TENTATIVE RULING:

The unopposed petition to confirm the arbitration award is GRANTED.

**SHAKE SHATTER & ROLL LLC et al. v. KOLABORATION VENTURES
CORPORATION et al.
Case No. CU25-09387**

KOLABORATION Defendants' Demurrer to WEISS's Cross-Complaint

TENTATIVE RULING

Cross-Defendants KOLABORATION VENTURES CORPORATION ("KVC"), CHARLES M. WESLEY, MARTIN C. WESLEY, and ANDREW C. WESLEY (together "Demurring Defendants") demur to the cause of action within Cross-Complainant PAUL WEISS's ("WEISS") cross-complaint (the "WEISS XC") alleging fraud. Summarized, the WEISS XC alleges that Demurring Defendants misrepresented their intentions in acquiring ELEVATION ENTERPRISE LLC ("EE"), a company of which WEISS was CEO, fabricated reasons for not fully performing under the EE purchase agreement, and misrepresented the state of KVC to WEISS when negotiating his employment at KVC following the purchase.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians’ Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. The elements of a cause of action for fraud via intentional misrepresentation are: (1) misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) justifiable reliance on the misrepresentation, and (5) resulting damages. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Allegations of fraud involve a serious attack on character and so are held to a higher standard of specificity than other allegations of wrongdoing. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216-217 (*Children’s Television*).)

The allegations directly under the heading “fraud” in the WEISS XC, comprising paragraphs 82-91, are vague and conclusory. Construing the earlier stated factual allegations of the complaint the court observes that WEISS alleges several misrepresentations collectively from Demurring Defendants. WEISS alleges that they told him KVC was in good financial shape, when KVC was in fact financially distressed. WEISS alleges he was told that after he was hired at KVC he would receive stock options. WEISS alleges that during the EE purchase negotiations Demurring Defendants agreed that KVC would service EE’s debts, which KVC refused to later do. WEISS also alleges that during close of the EE purchase KVC fabricated reasons for failing to deliver the full purchase price. WEISS makes no distinction between the individual defendants.

WEISS does not state facts showing how he relied on any of these alleged misrepresentations *to his detriment*. The alleged failures to service EE’s debts and deliver full payment for EE are not shown to be harms to WEISS. The alleged misrepresentations of KVC’s financial health are likewise not harms to WEISS. WEISS does not allege that he was actually denied promised stock options, or that he was otherwise harmed by accepting employment with KVC, and so does not state detrimental reliance on a misrepresentation in that regard either.

Relatedly, WEISS’s fraud claims all appear rooted in breaches of contract and are thus barred under the economic loss rule. WEISS directly alleges fraud in that he is “entitled

to the value of the benefit of his bargain had said bargain been fully and properly performed.” (WEISS XC at ¶ 90.) Contract actions are meant to vindicate the rights of parties to a contract while tort actions exist to vindicate social policy. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 19.) The economic loss rule operates to avoid drowning the law of contract in the expansive sea of tort recovery. (*Id.* at p. 20.) The rule holds that there is no recovery in tort for purely economic losses, meaning financial harm unaccompanied by personal or property damage. (*Ibid.*) To avoid the rule a claimant seeking tort recovery for breach of a contract duty must show that the defendant’s conduct violated a duty independent of the rights and duties assumed under the contract and the defendant must have caused injury to persons or property not reasonably contemplated by the parties when the contract was formed. (*Id.* at ¶¶ 21-22.) Where an alleged breach is based on failure to perform as a contract provides and the parties reasonably anticipated and allocated the risks associated with the breach the action will generally sound only in contract because the breach deprives an injured party of the benefit for which it bargained. (*Id.* at ¶ 27.)

WEISS alleges only conduct falling under the economic loss rule because he expressly alleges “fraud” in that Demurring Defendants breached the EE purchase agreement and his contract of employment, denying him the benefits of bargains.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party’s pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) WEISS not having filed opposition, he does not indicate a reasonable possibility that amendment can cure identified defects.

Conclusion. Demurring Defendants’ unopposed demurrer to the cause of action for fraud plead in WEISS’s cross-complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Rosamaria Guadalupe Campos-Alvarez et al. v. Humberto Espinoza, et al.
Case No. CU26-01890

Petition to Approve Minor’s Compromise (A.A.)
Petition to Approve Minor’s Compromise (D.A.)

TENTATIVE RULING:

The petition to approve the compromise of minor A.A.’s claims is GRANTED.

The petition to approve the compromise of minor D.A.’s claims is GRANTED.
